HEADNOTE

> *"The mere alleged conduct of failing to comply with a future cost decision does not justify the provision of security for costs."*

COURT
Local Division in Düsseldorf

PROCEEDINGS
Infringement action

PATENT
EP 1793917

A DEVICE FOR CARBONATING A LIQUID WITH PRESSURIZED GAS

KEYWORDS
Security for costs · Compliance · Future decision

SUMMARY
The Local Division in Düsseldorf ruled on an infringement action. The patent at issue relates to a device for carbonating a liquid with pressurized gas. According to the headnotes of the decision, a mere allegation does not justify security for costs. This allegation concerns potential failure to comply with a future cost decision. This means that speculative concerns about future non-compliance are insufficient grounds for such protective measures.